



EMPLOYMENT AGREEMENT

This Employment Agreement (“Agreement”) is made on this **27th** day of **April 2026**.

BETWEEN

PANACHE TECHNOHUB LIMITED

A limited liability company duly incorporated in the Republic of Kenya, with its registered office at:
8th Floor, Office Suite 1, Westpark Towers, Mpesi Lane
Off Muthithi Road, Westlands
P.O. Box 43569-00100, Nairobi, Kenya
(Hereinafter referred to as the “Company”)

AND

RONALD NDOLO

ID No: **402283321**

Email: musaaronado2@gmail.com

(Hereinafter referred to as the “Employee”)

The Company and the Employee are collectively referred to as the “Parties”.

1. APPOINTMENT AND COMMENCEMENT

1.1 The Company hereby employs the Employee as **Systems Developer**, effective **2nd May 2026**.

1.2 The Employee accepts such employment subject to the terms and conditions of this Agreement and related employment documents.

2. PLACE OF WORK

2.1 The Employee’s primary workstation shall be the Company’s Nairobi offices.

2.2 The Employee may be required to work remotely, travel to client premises, partner locations, or any other location reasonably directed by the Company.

3. REPORTING LINE

3.1 The Employee shall report to the Managing Director or such other person as designated by the Company.

4. REMUNERATION

4.1 The Employee shall receive a consolidated gross monthly salary of **KES 43,587.07** payable monthly in arrears. At the time of employment, the estimated take-home net pay shall be **KES 35,000.00** subject to applicable statutory deductions under Kenyan law.

4.2 The Employee acknowledges that the Company operates within a project-based and performance-driven business environment where revenue realization depends substantially on successful project execution, software delivery, operational performance, client satisfaction, collections, and project profitability.

4.3 Accordingly, the Employee shall be expected to actively contribute toward software development, solution delivery, operational productivity, innovation, client satisfaction, project execution, profitability, and overall business growth as part of his employment obligations and performance evaluation.

4.4 Continued employment, salary reviews, incentives, and overall compensation progression shall be tied to performance, operational contribution, business sustainability, financial capability of the Company, and compliance with Company expectations, policies, and KPIs.

4.5 Salary shall be subject to all statutory deductions required under Kenyan law.

4.6 The Company may review remuneration periodically based on performance, financial capability, business growth, operational sustainability, and market conditions, without obligation to increase salary.

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5. PROBATION

- 5.1 The first three (3) months of employment shall constitute probation.
- 5.2 Probation may be extended in accordance with the Employment Act, 2007.

6. WORKING HOURS AND LEAVE

6.1 Normal working hours shall be Monday to Friday, 8:30 AM – 5:30 PM inclusive of a one-hour lunch break.

6.2 Due to the operational and project-driven nature of the role, the Employee may be required to work reasonable additional hours without additional compensation, in compliance with applicable law.

6.3 Leave Entitlement

6.3.1 The Employee shall be entitled to twenty-one (21) working days of paid annual leave for each completed year of service, accruing on a pro-rata monthly basis in accordance with the Employment Act, 2007.

6.3.2 Annual leave shall be taken at such times as may be approved by the Company, taking into account operational requirements and project timelines.

6.3.3 The Employee shall be entitled to all gazetted public holidays observed in Kenya.

6.3.4 The Employee shall be entitled to statutory sick leave, maternity leave, and any other leave provided under Kenyan law.

6.3.5 A maximum of ten (10) working days of accrued but untaken annual leave may be carried forward into the subsequent leave cycle, subject to prior written approval of the Company.

6.3.6 Accrued leave shall not be carried forward beyond the following leave cycle except with prior written approval of the Company.

6.3.7 Upon termination of employment, any accrued but untaken leave shall be compensated in accordance with the Employment Act, 2007.

7. DUTIES AND RESPONSIBILITIES

7.1 The Employee shall:

A. Software Development & Technical Delivery

- a) Design, develop, customize, test, deploy, maintain, and support enterprise software solutions and digital platforms; primarily Dynamics 365 Business Central, Integrations and Portals.
- b) Participate in system analysis, technical architecture planning, debugging, troubleshooting, optimization, and solution enhancement activities;
- c) Develop integrations, APIs, automation tools, workflows, reports, dashboards, extensions, and related technical components;
- d) Ensure delivery of secure, scalable, reliable, maintainable, and high-quality software solutions aligned with Company standards.

B. Project Delivery & Operational Support

- e) Support implementation, deployment, migration, user support, documentation, training, and client onboarding activities;
- f) Collaborate with project managers, consultants, developers, partners, and stakeholders to ensure successful project execution;
- g) Contribute toward meeting project deadlines, operational targets, client expectations, and quality assurance requirements.

C. Innovation, Research & Continuous Improvement

- h) Conduct research and contribute toward innovation, automation, optimization, AI integration, and technology advancement initiatives;
- i) Support internal product development initiatives including digital logistics solutions, ERP systems, enterprise automation platforms, and AI-powered solutions;

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j) Contribute toward strengthening the Company's technical capacity, delivery standards, cybersecurity posture, operational efficiency, and solution scalability.

D. Governance, Security & Compliance

k) Protect confidential technical, operational, financial, commercial, and client information;

l) Comply with Company cybersecurity standards, governance procedures, operational controls, and development policies;

m) Maintain proper technical documentation, version control, deployment records, audit trails, and project reporting standards.

7.2 The Employee shall exercise due care, diligence, skill, professionalism, integrity, and fiduciary responsibility in execution of his duties.

7.3 PERFORMANCE & KEY PERFORMANCE INDICATORS (KPIs)

The Employee's performance shall be reviewed periodically based on the following non-exhaustive indicators:

7.3.0 Strategic Business Growth & Operational Contribution

- Support and contribute toward achieving a minimum annual Company growth target of twenty percent (20%) in revenue, operational scale, profitability, market positioning, or strategic expansion.
- Contribute directly toward Company profitability through operational efficiency, successful project execution, innovation, automation, quality technical delivery, and cost optimization.
- Support sustainable business growth through scalable systems development, technical excellence, client satisfaction, cybersecurity compliance, and operational reliability.

7.3.1 Technical Delivery & Project Performance

- Timeliness and quality of software delivery
- Accuracy, stability, scalability, and maintainability of developed solutions
- Project completion rates and operational efficiency
- Technical problem-solving effectiveness
- System uptime, issue resolution, and support responsiveness

7.3.2 Innovation & Technical Excellence

- Contribution toward automation and innovation initiatives
- Technical documentation quality and governance compliance
- Adoption of best practices, security standards, and optimization measures
- Continuous professional development and technical improvement

7.3.3 Operational & Stakeholder Performance

- Quality of collaboration with internal teams and clients
- Professional conduct and communication
- Responsiveness to operational requirements and project timelines
- Contribution to organizational growth and operational efficiency

KPIs may be reviewed and adjusted by the Company in line with operational objectives and business requirements.

8. FIDUCIARY DUTY AND LOYALTY

8.1 The Employee acknowledges that by virtue of his position and access to confidential and commercially sensitive information, he owes fiduciary duties of loyalty, fidelity, integrity, and good faith to the Company.

8.2 The Employee shall:

- a) Act at all times in the best interests of the Company;
- b) Avoid conflicts of interest;
- c) Not misuse Company resources or confidential information;
- d) Promptly disclose any actual or potential conflict;

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e) Protect the reputation, goodwill, technical assets, operational interests, commercial interests, and strategic interests of the Company.

8.3 These duties apply during employment and survive termination to the extent permitted by law.

9. CONFLICT OF INTEREST

9.1 The Employee shall not engage in any external employment, consultancy, freelance development, or competing business activity without prior written approval of the Company.

9.2 The Employee confirms that all existing engagements that may constitute a conflict have been disclosed.

10. CONFIDENTIALITY

10.1 “Confidential Information” includes but is not limited to:

- Source code, APIs, integrations, scripts, repositories, credentials, and technical documentation;
- Client systems, operational data, financial data, and implementation records;
- Business strategies, software architectures, commercial models, and technical methodologies;
- Internal systems, databases, workflows, deployment environments, and operational processes;
- Company product designs, AI models, automation systems, proprietary frameworks, and trade secrets;
- Any derivative works or confidential knowledge developed therefrom.

10.2 The Employee shall:

- a) Keep all Confidential Information strictly confidential;
- b) Use such information solely for Company purposes;
- c) Not disclose such information without written consent;
- d) Implement reasonable administrative, technical, and operational safeguards to protect such information.

10.3 These obligations survive termination indefinitely.

11. INTELLECTUAL PROPERTY

11.1 All software code, systems, integrations, APIs, technical documentation, automation tools, AI models, databases, reports, frameworks, repositories, methodologies, and related materials created, developed, or contributed to during employment shall be the exclusive property of the Company.

11.2 The Employee irrevocably assigns all rights relating thereto to the Company worldwide.

11.3 The Employee agrees to execute all documents reasonably required to perfect, register, or enforce such rights.

11.4 The Employee shall not reuse, commercialize, replicate, or deploy Company-developed systems, frameworks, repositories, methodologies, automation tools, or derivative works for personal benefit or competing entities.

12. DATA PROTECTION

12.1 The Employee shall comply with all applicable data protection laws and Company policies.

12.2 The Employee consents to lawful processing of personal data for employment and business purposes.

13. LIMITED NON-COMPETITION

13.1 For twelve (12) months following termination, the Employee shall not engage in employment or business materially competing with the Company’s ICT solutions, enterprise systems, software development, AI solutions, consulting, digital logistics, automation, or related operational services within Kenya or markets where the Company actively operates.

13.2 This restriction applies only to activities substantially similar to those performed for the Company.



14. NON-SOLICITATION

14.1 For twenty-four (24) months following termination, the Employee shall not:

- a) Solicit clients, vendors, consultants, developers, or partners with whom he had material dealings during employment;
- b) Induce employees or contractors to leave the Company;
- c) Use confidential information to divert Company opportunities.

14.2 These restrictions are reasonable and necessary to protect the legitimate business interests of the Company.

15. RETURN OF COMPANY PROPERTY

15.1 Upon termination, the Employee shall immediately return all Company property, documents, credentials, systems access, databases, repositories, devices, and technical records.

15.2 Upon request, the Employee shall certify destruction of confidential information in his possession, including information stored on personal devices, personal cloud storage, email accounts, or removable storage media.

16. TERMINATION

16.1 Either Party may terminate this Agreement by giving one (1) month's written notice or payment in lieu of notice.

16.2 The Company may summarily dismiss the Employee for gross misconduct in accordance with the Employment Act, 2007.

16.3 Garden Leave

16.3.1 During any notice period, whether given by the Company or the Employee, the Company may, at its discretion, require the Employee not to attend the workplace or perform duties for all or part of the notice period ("Garden Leave").

16.3.2 During Garden Leave:

- a) The Employee shall remain bound by all contractual obligations;
- b) The Employee shall remain available to provide assistance or information as reasonably required;
- c) The Employee shall not engage in alternative employment or business activity without written consent.

16.3.3 Salary and contractual benefits shall continue during the Garden Leave period.

16.4 Suspension

16.4.1 The Company may suspend the Employee on full pay pending investigation of alleged misconduct or breach of this Agreement.

16.4.2 Suspension shall not constitute disciplinary action but shall be an administrative measure pending inquiry.

16.5 Disciplinary Procedure

16.5.1 Any disciplinary action shall be conducted in accordance with the Employment Act, 2007, including compliance with procedural fairness requirements under Section 41 of the Act.

16.5.2 The Company reserves the right to issue warnings, suspend, or take disciplinary measures proportionate to the nature and severity of the misconduct.

17. COMPANY POLICIES AND GOVERNANCE

17.1 The Employee shall comply with all Company policies, procedures, governance frameworks, technical standards, cybersecurity protocols, and internal controls as may be issued and amended from time to time.

17.2 Such policies shall form part of the Employee's terms of employment and may include, without limitation:

- Human Resource policies;
- Information security and IT usage policies;

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- Software development and repository management standards;
- Data protection and privacy frameworks;
- Cybersecurity and operational governance procedures;
- Disciplinary and compliance procedures.

17.3 Failure to comply with Company policies may result in disciplinary action in accordance with the Employment Act, 2007.

18. REMEDIES

18.1 The Employee acknowledges that breach of fiduciary duty, confidentiality obligations, restrictive covenants, governance obligations, or intellectual property rights may cause irreparable harm to the Company.

18.2 The Company shall be entitled to injunctive relief, specific performance, and all remedies available in law without the requirement to post security.

19. GOVERNING LAW AND DISPUTE RESOLUTION

19.1 This Agreement shall be governed by the laws of Kenya.

19.2 Any dispute arising from this Agreement shall be resolved by arbitration in Nairobi under the Arbitration Act, 1995 (Kenya).

19.3 The Company may seek interim or injunctive relief before a competent court.

20. RELATED DOCUMENTS

This Agreement shall be read together with:

- The Non-Disclosure & Intellectual Property Agreement;
- Company HR and Governance Policies;
- Information Security Policies;
- Operational and Technical Governance Standards.

In the event of inconsistency, the provision affording greater protection to the Company shall prevail.

21. ENTIRE AGREEMENT

This Agreement constitutes the complete understanding between the Parties regarding the Employee's employment.

22. INTERPRETATION AND SEVERABILITY

22.1 If any provision of this Agreement is found invalid or unenforceable, such provision shall be severed to the minimum extent necessary and the remainder of the Agreement shall remain in full force and effect.

22.2 The Parties acknowledge that the restrictive covenants contained herein are reasonable and necessary for the protection of the legitimate business interests of the Company.

SIGNATURES

SIGNED for and on behalf of
PANACHE TECHNOHUB LIMITED

Signature: _____

Name: Amos J. Muthui

Title: Managing Director

Date: **27th April 2026**



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SIGNED by the **Employee**

Signature: _____

Name: Ronald Ndolo

Date: **27th April 2026**

Witness: _____

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